

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

EARLEAN EDWARDS DUKART, *Complainant*

v.

OCEAN STAR INTERNATIONAL INC.,
D/B/A INTERNATIONAL VAN LINES, *Respondent*.

DOCKET NO. 20-03

Served: March 2, 2020

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge*

RESPONSE TO RESPONDENT'S MOTION

The Respondent's entire argument is based on inaccurate, incomplete, exaggerated and false statements. The Respondent's argument immediately reflects the lack of honesty, and dishonorable disrespect of these proceedings with the untruths presented within, from the very first paragraph. As evidenced by earlier email requests for IVL to disclose their legal contact information; this complaint was not a surprise as the Respondent stated. Rather than the "pages and pages of statements speaking of medical issues" as stated, there is only one (1) medical issue addressed throughout the complaint.

Respondent is incorrect in the declaration that David Rejon, refers to himself as the author, and that David Rejon was misinformed about the submitted complaint prior to. Earlean Edwards Dukart did diligently and solely author each and every word of the submitted complaint, giving a true and accurate first hand detailing of events, supported by all emails that were exchanged. Not just the incomplete handful of select emails chosen by the Respondents that do not include events transpiring in April and May of 2018 that complete the context of the latter emails. David Rejon did nothing more than verify the sworn complaint. David Rejon did not participate, in any way, in the authoring of said complaint.

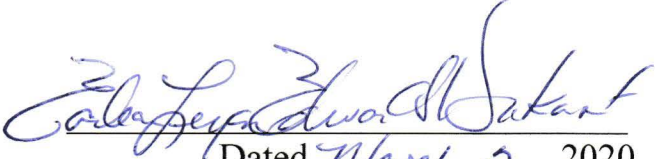
Respondent, inaccurately states that they do not understand their involvement. The submitted contract entered was to ship household goods from Denver to Belize, not a haphazard relocation to rodent infested storage 18 miles away. (Exhibit 1, pages 42 and 43.)

Respondent falsely states that items were released to another carrier. They were not released to another carrier, they were retrieved by Complainant as evidenced by emails to Scott Kalinowski. Respondent exaggerates and falsely reports of the interactions with Baron Worldwide. There were complications, most as a result of Respondent's refusal to release shipments in a timely manner as stated in the original complaint. There were no credit cards used, debit card transactions were only delayed by a transfer of funds from savings to checking

not being instant. Respondent falsely reported of exchanges with Baron Worldwide occurring through November of 2018, evidence submitted by both parties clearly show from June 28, 2018 Dawne Harris/ Baron Worldwide were no longer involved. Respondent falsely stated that Baron Worldwide "canceled due to difficulties in dealing with ED," an email dated June 17th states: "Sam [Bassin] I am having a problem with the release of my belongings. I'm attempting to resolve this now. I don't know how to proceed." ED terminated attempts to proceed with Baron Worldwide, and can provide all email exchanges that occurred in support. Outstanding charges for Baron Worldwide are included in damages incurred, and relief requested.

Respondent submitted forged documents to evidence receipt of inventory. Email evidence clearly shows ED informed IVL of these forged documents. Again, original unsigned bound copies are in ED's possession currently. (Exhibit 11, pages 58-62.) Respondent submitted photos that Complainant sent during loading while asking why valuable space was not being used, suggesting that the questions asked were a detrimental factor against completion of the contract. The email to Karen Nueber is misrepresented as the first mentioning of the pods rather than the actual briefing of transpired events that it was, given she had no internal knowledge from co-workers of such. Meeting the container with the additional items for exchanges (*ie.* the Packrat pods) was a direct suggestion from IVL to resolve loading conflicts that they created, by failing to provide the contracted container or adequate labor and equipment to remove all items as contracted. Respondent submitted an email from Dawne Harris dated February 11, 2020 that contains an excerpt from an email dated June 27, 2018 and the other states I cancelled. Undoubtedly, everyone who participated can recall "the fiasco the nightmarish events," including those that will happily provide sworn statements on my behalf of their participation and recount of transpired events to evidence the truth. Respondent falsely states evidence of an irrational person, fabricating accusations, and denies that this was contracted as an overseas shipment to be handled by his company as evidenced by the initial invoice. (Exhibit 1, pages 42 and 43.)

It is respectfully requested that the Respondent's Motion for removal from FMC's Federal Register be dismissed and that the Verified Formal Complaint proceedings continue so that a joint discovery schedule can be prepared and that a preliminary conference may be scheduled in accordance with the Initial Order.


Dated March 2, 2020

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